

1 _____ BILL NO. _____

2 INTRODUCED BY _____
3 (Primary Sponsor)

4 A BILL FOR AN ACT ENTITLED: "AN ACT ESTABLISHING THE MONTANA-IRELAND TRADE COMMISSION
5 TO STUDY BILATERAL TRADE AND INVESTMENT BETWEEN MONTANA AND IRELAND AND MAKE
6 RECOMMENDATIONS; ESTABLISHING MEMBERSHIP AND PURPOSE REQUIREMENTS; PROVIDING
7 FOR MEETINGS OF THE MONTANA-IRELAND TRADE COMMISSION; ESTABLISHING REPORTING
8 REQUIREMENTS; PROVIDING DEFINITIONS; CREATING A SPECIAL REVENUE ACCOUNT; AND
9 PROVIDING AN EFFECTIVE DATE."

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11 WHEREAS, a significant portion of Montana residents are of Irish descent and have ancestors who
12 immigrated from Ireland and settled in numerous locations throughout the state; and

13 WHEREAS, the ties that bind Ireland to Montana are deep lasting, and to honor those of Irish descent
14 the state recognizes and celebrates March 17 of each year as Irish Heritage Day; and

15 WHEREAS, Ireland and Montana are attempting to reinvent their economies for success in the twenty-
16 first century; and

17 WHEREAS, Montana has both historic and practical reasons to desire the building of stronger
18 commercial links with Ireland.

19

20 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

21

22 NEW SECTION. **Section 1. Montana-Ireland trade commission.** (1) There is a Montana-Ireland
23 trade commission.

24 (2) The commission consists of:

25 (a) one member of the senate appointed by the president of the senate;

26 (b) one member of the house of representatives appointed by the speaker of the house of
27 representatives;

28 (c) one member of the senate appointed by the minority leader of the senate;

(d) one member of the house of representatives appointed by the minority leader of the house of representatives;

(e) the director of the department of commerce, or the director's designee;

(f) the director of the department of agriculture, or the director's designee;

(g) the commissioner of higher education, or the commissioner's designee;

(h) one Montana resident, appointed by the governor, who represents the Irish American community in this state and is interested in furthering trade between Montana and Ireland; and

(i) one Montana resident at large, appointed by the governor, who is part of a Montana business association, trade organization, economic development organization, or chamber of commerce headquartered in this state and is focused on the promotion of international trade.

(3) (a) Each appointed member shall serve for an initial term of 2 years and may be reappointed. A vacancy must be filled for the remainder of the term in the same manner as the original appointment.

(b) The appointing authority for a member may remove the member and substitute another appointee for the member at any time for the duration of the term.

(4) (a) The appointed members serve staggered terms of 2 years. The initial appointments are as follows: the two members appointed by the governor shall serve 1 year each, and the four legislative members shall serve 2 years each.

(b) All initial appointments must be made no later than [90 days following the effective date of this act].

(5) (a) Commission members shall serve without compensation but may be reimbursed as provided in 2-18-501 through 2-18-503 for travel expenses incurred in the performance of their duties, within the limit of funds available to the commission.

(b) The commission shall raise all money necessary, through direct solicitation or other fundraising events, to fund the activities of the commission, including meetings and travel expenses related to the commission's purposes as provided in [section 4]. The funds raised pursuant to this subsection (5)(b) must be deposited in the Montana-Ireland trade development special revenue account provided for in [section 6].

(6) The commission is allocated to the department of commerce for administrative purposes only as provided in 2-15-121.

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2 NEW SECTION. Section 2. Short title. [Sections 2 through 7] may be cited as the "Montana-Ireland
3 Trade Development Act".

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5 NEW SECTION. Section 3. Definitions. As used in [sections 2 through 7], unless the context clearly
6 indicates otherwise, the following definitions apply:

7 (1) "Commission" means the Montana-Ireland trade commission established in [section 1].

8 (2) "Department" means the department of commerce established in 2-15-1801.

9

10 NEW SECTION. Section 4. Purposes -- fundraising. (1) The purposes of the commission are to:

11 (a) advance bilateral trade and investment between Montana and Ireland;

12 (b) initiate joint action on issues of mutual interest to Montana and Ireland;

13 (c) promote business and academic exchanges between Montana and Ireland;

14 (d) encourage mutual economic support between Montana and Ireland;

15 (e) encourage mutual investment in the infrastructure of Montana and Ireland; and

16 (f) address any other issues deemed to be of mutual benefit to Montana and Ireland.

17 (2) The commission may raise funds through direct solicitation or other fundraising events, alone
18 or with other groups, and may accept gifts, grants, and donations to carry out its purpose.

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20 NEW SECTION. Section 5. Meetings -- election of officers. (1) (a) The commission shall convene
21 for its first meeting no later than 30 days after all commission members have been appointed.

22 (b) At the initial meeting of the commission and annually thereafter, the members shall select one
23 member from among the four appointed legislators to serve as the chair.

24 (2) (a) The commission shall meet as necessary at the call of the chair, subject to the availability of
25 funds in the Montana-Ireland trade development special revenue account provided for in [section 6].

26 (b) A majority of the commission membership constitutes a quorum to do business, and all official
27 actions of the commission require an affirmative vote of a majority of the members present and voting.

28 (c) The commission may meet and hold hearings at locations it designates throughout the state.

1 Commission meetings, including the first meeting, can be held by electronic means.

2 (3) The commission shall keep records of all proceedings. The records must be public and open to
3 inspection.

4

5 NEW SECTION. **Section 6. Montana-Ireland trade development special revenue account.** (1)

6 There is established in the state treasury the Montana-Ireland trade development special revenue account to
7 the credit of the department. The purposes of the account are to reimburse the department for the
8 administrative expenses of the commission and to support the commission's efforts to carry out its purposes
9 listed in [section 4].

10 (2) The account consists of all funds raised by or on behalf of the commission, together with any
11 gifts, grants, or other donations. Interest on funds credited to the account must remain in the account.

12

13 NEW SECTION. **Section 7. Reporting requirement.** On or before September 1 of each year, the
14 Montana-Ireland trade commission shall provide a report to the governor and the legislature, in accordance with
15 5-11-210. The report must include:

16 (1) a description of the commission's work, including how often the commission met during the
17 preceding 12 months and the minutes of the commission's meetings;

18 (2) a description of benefits to the state and to sectors involved in international trade, attributable
19 to the commission's efforts;

20 (3) recommendations for legislative action that would support trade between THE state and Ireland;
21 and

22 (4) a summary of anticipated commission activities in the ENSUING year, including any
23 recommendations or requests that may assist the commission's work.

24

25 NEW SECTION. **Section 8. Codification instruction.** (1) [Section 1] is intended to be codified as an
26 integral part of Title 2, chapter 15, part 18, and the provisions of Title 2, chapter 15, part 18, apply to [section 1].

27 (2) [Sections 2 through 7] are intended to be codified as an integral part of Title 90, chapter 1, part
28 1, and the provisions of Title 90, chapter 1, part 1, apply to [sections 2 through 7].

3 - END -